

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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HELARY DUPIGNY

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
NICOLA APADULA, Tax No. 954496, and POLICE
OFFICERS JOHN DOES # 1-10 (names and numbers of
whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
January 29, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
PO Nicola Apadula, Tax # 954496, 79th Pct., 263 Tompkins Ave, Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

HELARY DUPIGNY

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER
NICOLA APADULA, Tax No. 954496, and POLICE
OFFICERS JOHN DOES # 1-10 (names and numbers of
whom are unknown at present),**JURY TRIAL DEMANDED**

Defendants.

----- X

Plaintiff HELARY DUPIGNY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 31, 2017 at approximately 3:00 pm plaintiff was a lawful passenger in a vehicle driven by his friend when the defendant NYPD officers stopped the vehicle in the vicinity of Tomkins Avenue and Quincy Street, Brooklyn, New York, unlawfully searched plaintiff, sexually assaulted plaintiff during the unlawful search by grabbing plaintiff's penis, unlawfully handcuffed plaintiff, falsely arrested/ imprisoned plaintiff, strip searched plaintiff, sexually assaulted plaintiff 3 additional times during the course of his unlawful detention, and unlawfully detained plaintiff for approximately 3 hours before releasing plaintiff with a Criminal Summons charging plaintiff with Disorderly Conduct, a crime the officers lacked probable cause to accuse him of committing. The criminal court summons contained factual allegations against plaintiff that were false and that were fabricated by the defendants. The defendants maliciously prosecuted plaintiff and denied him the right to due process/ right to a fair trial. Plaintiff was required to appear in Criminal Court to address the fabricated Criminal Charge brought against him by defendants. All criminal charges were dismissed and sealed in their entirety on January 12, 2018. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, assaulted, battered, subjected him to the use of excessive force, denied him the right to due process/ right to a fair trial, and maliciously prosecuted plaintiff in violation of New York State law and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff HELARY DUPIGNY is and was at all times relevant herein a resident of the State of New York.

3. Defendant POLICE OFFICER NICOLA APADULA, Tax No. 954496, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER NICOLA APADULA, Tax No. 954496, is and was at all times relevant herein, assigned to the 79th Precinct.

5. Defendant POLICE OFFICER NICOLA APADULA, Tax No. 954496, is being sued in her individual and official capacity.

6. Defendants New York City Police Officers John Does # 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Defendants Police Officers John Does # 1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

12. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about May 21, 2018.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On October 31, 2017 at 3:00 pm plaintiff was lawfully present as a passenger in a vehicle driven by his friend in the vicinity of Tompkins Avenue and Quincy Street, Brooklyn, NY, when defendants pulled the vehicle over.

17. Defendants claimed that they pulled the vehicle over because the vehicle allegedly had a tail light that was not functioning properly.

18. After the defendants stopped the vehicle driven by plaintiff's friend they approached the vehicle and ordered the driver to exit the vehicle.

19. The driver complied with the order by defendants and exited the vehicle and defendants brought the driver to the rear of the vehicle.

20. The defendants searched the driver of the vehicle and did not recover any illegal substances, weapons or contraband from the driver pursuant to the search.

21. Plaintiff was lawfully seated in the rear passenger seat of the vehicle when it was pulled over by defendants.

22. After the defendants searched the driver of the vehicle, the defendant police officers returned to the vehicle and falsely alleged that the vehicle smelled like marijuana.

23. In fact, the vehicle did not smell like marijuana and there was not any marijuana in the vehicle or in the possession of any of the vehicle's occupants at any time relevant herein.

24. At no time relevant herein did the defendant officers recover marijuana or any other controlled substance from the vehicle or from any of the vehicle's occupants.

25. Nevertheless, the defendants unlawfully ordered everyone, including plaintiff, to get out of the vehicle.

26. Plaintiff was video recording defendants on his cell phone and he asked defendants why defendants were ordering plaintiff to exit the vehicle, as he did not violate the law whatsoever.

27. Although the defendant officers were unable to provide plaintiff with a valid legal explanation for why they ordered plaintiff to exit the vehicle, plaintiff obeyed defendants' order to exit the vehicle and exited the vehicle with his hands above his head so that the officers would know he wasn't holding anything dangerous.

28. After plaintiff exited the vehicle, the defendants unlawfully searched plaintiff without probable cause or legal justification.

29. During the unlawful search of plaintiff's person the defendants assaulted, battered and sexually assaulted plaintiff by grabbing his penis, without cause or legal justification.

30. Defendants did not recover any illegal drugs, weapons or contraband from plaintiff pursuant to the search of his person.

31. The fact that defendants sexually assaulted plaintiff during the search of his person by touching his penis caused plaintiff to suffer extreme emotional distress and anxiety, in part because it was extremely embarrassing and intrusive and in part because plaintiff believed that the officers sexually assaulted him in order to exert their authority over plaintiff and to demonstrate to plaintiff that the officers had the ability and authority to do whatever they wanted to plaintiff and that there was nothing he could do about it.

32. Plaintiff became annoyed that the defendants unlawfully grabbed his penis and plaintiff verbally expressed his displeasure to defendants.

33. In retaliation for plaintiff expressing his displeasure to defendants, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested/ imprisoned plaintiff without probable cause or legal justification.

34. Defendants transported plaintiff against his will to the 79th Precinct.

35. The defendant police officers repeatedly reminded plaintiff of the power they possessed over him by grabbing his penis again three more times: (a) as defendants were placing plaintiff in the police vehicle to transport plaintiff to the precinct; (b) while defendants searched plaintiff at the 79th Precinct in front of the desk when they arrived at the precinct; and (c) in the holding cell at the police station while defendants were removing plaintiff's belt and shoelaces from plaintiff.

36. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the defendant police officers possess probable cause to believe plaintiff committed a crime or violated the law in any manner.

37. The defendant police officers falsely and maliciously charged plaintiff with Disorderly Conduct and falsely alleged that plaintiff “refused to obey a lawful order to have his hands visible and repeatedly reached in the vehicle and used offensive/violent language.”

38. Defendants’ allegations against plaintiff are fabricated and wholly untrue.

39. Defendants unlawfully searched plaintiff at the front desk of the 79th Precinct immediately upon arriving at the precinct and nothing illegal was recovered pursuant to the search.

40. Thereafter, defendants brought plaintiff to the back of the precinct and unlawfully strip searched him without probable cause to believe plaintiff concealed something unlawful underneath his clothing.

41. The strip search was extremely intrusive and emasculating for plaintiff and caused him to suffer extreme emotional distress and anxiety. At no point in time relevant herein did the officers have reasonable suspicion or probable cause to suspect plaintiff concealed a weapon, illegal drugs, or contraband underneath his clothing.

42. Defendants did not recover anything illegal from plaintiff pursuant to the strip search.

43. Defendants unlawfully fingerprinted, photographed, and detained plaintiff in a holding cell at the 79th Precinct.

44. Defendants unlawfully issued plaintiff a criminal court summons that contained false allegations against plaintiff and falsely charged him with Disorderly Conduct.

45. Plaintiff was unlawfully detained by defendants for approximately 3 hours before they unlawfully issued him the summons and released him from the Precinct.

46. Plaintiff was required to appear in Criminal Court to address the false and fabricated Criminal Charge brought against him by defendants.

47. All criminal charges were dismissed and sealed in their entirety and terminated in plaintiff’s favor on January 12, 2018.

48. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe she committed a crime or violated the law.

49. Some of the police officer defendants observed their fellow officers violate plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent and /or stop their fellow officers from conducting the unlawful search, seizure, false arrest, assault, battery, excessive force, denial of the right to due process/ fair trial and malicious prosecution of plaintiff.

50. The unlawful search, false arrest/ imprisonment, assault, battery, excessive force, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, unlawfully strip searched, denied of his right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Searches

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to repeatedly search plaintiff.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

65. Defendants commenced and continued a criminal proceeding against plaintiff.

66. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

67. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

68. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

74. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

80. Defendants filled out false and misleading police reports and Summons and forwarded them to prosecutors in the Kings County District Attorney's Office.

81. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

82. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment****Rights**

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The use of excessive force by defendants by grabbing plaintiff's penis and sexually assaulting him on four occasions throughout the course of the unlawful detention of plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

88. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

NINTH CAUSE OF ACTION**Assault**

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Battery

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

98. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligence

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. Defendants owed a duty of care to plaintiff.

104. To the extent the defendants claim that they accidentally grabbed plaintiff's penis on four occasions during plaintiff's unlawful detention, then plaintiff's injuries caused when the officers grabbed his penis on four separate occasions were caused by defendants breach of their duty of care by causing plaintiff to suffer physical and emotional injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior..

105. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

106. All of the foregoing occurred without any fault or provocation by plaintiff.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Failure to Intervene

110. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

112. Defendants failed to intervene to prevent the unlawful conduct described herein.

113. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

115. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff Helary Dupigny demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damage, and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 January 29, 2019

_____/s/
DAVID M. HAZAN